



DEPARTMENT OF THE NAVY
NAVAL AIR WARFARE CENTER AIRCRAFT DIVISION
21983 BUNDY ROAD BUILDING 3272
PATUXENT RIVER, MD 20670

IN REPLY REFER TO

4200
J&A 25-0121

**JUSTIFICATION FOR AN
EXCEPTION TO FAIR OPPORTUNITY**

1. Contracting Activity.

Naval Air Warfare Center Aircraft Division (NAWC-AD) Patuxent River, MD

2. Description of the Action Being Approved.

This Justification for Exception to Fair Opportunity (JEFO) authorizes the use of FAR 16.505(b)(2)(i)(B) to issue a direct task order (TO) on the Air-to-Air Refueling (AAR) Multiple-Award Indefinite Delivery, Indefinite Quantity (MA/IDIQ) Contract Number N00421-21-D-0033 to CASS Professional Services (CPS), One Ridgeway Drive, Suite 145, Temecula, CA 92590-5505, for Contracted AAR Services utilizing their KC-135R Multi-Point Refueling System (MPRS).

3. Description of Supplies/Services Required to Meet the Agency's Needs (including the estimated value).

This task order will provide contractor owned and operated aircraft to fulfill the critical requirements for Contracted AAR Services in support of the German Air Force Foreign Military Sales (FMS) Case [REDACTED] for Eurofighter Typhoon EF-2000 and PA200 Tornado receiver aerial refueling services. CPS will be supporting Typhoon and Tornado training events in the [REDACTED]. This Task Order Request (TOR) contains a specific requirement to receive AAR services for the Typhoon and Tornado receiver aircrafts via a KC-135R. CPS is the only contractor with a tanker aircraft that has the required Interim Flight Clearance (IFC) approvals to provide AAR services to the Typhoon and Tornado aircraft.

The estimated Period of Performance (PoP) for this task order is [REDACTED]

The total estimated value of this contract action is \$1,919,334.40 (dry contract/less fuel) and is anticipated to be funded as set forth in the below table.

Estimated Dollar Value

Funding Type	Flight Hours (80 FH)	Travel	Total Estimated Price
Foreign Military Sales			\$1,919,334.40

Table 2			
Event	Mission Dates	TMS	Flight Hours
German FMS AAR		Typhoon/Tornado	80
Remarks			
No remarks.			

4. Identification of the Justification Rationale and Demonstration of the Proposed Contractor's Unique Qualifications to Provide the Required Supply or Service.

In accordance with FAR 16.505(b)(2)(i)(B) only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.

CPS is the only responsible source that can satisfy the requirements set forth in paragraph 3 without experiencing unacceptable delays and an interruption in services. CPS is the only known source that possesses Federal Aviation Administration certified aircraft with an approved United States Navy interim flight clearance (IFC) to immediately provide the KC-135R AAR MPRS services to the Typhoon and Tornado receiver aircraft. The KC-135R provided by CPS is the only platform with a MPRS that can provide training on the Tornado. The Government is not aware of any other contractor with the requisite aircraft and authorization to provide the services set forth above in paragraph 3. Obtaining these required services by other means would create an unacceptable impact to execution of the German Air Force operational requirements.

5. A Determination by the Contracting Officer that the Anticipated Cost to the Government will be Fair and Reasonable.

CPS's rates at the Multiple Award Contract (MAC) level have been approved as fair and reasonable based on the N00421-20-R-0094. In accordance with FAR 16.505 (b)(2)(ii)(B)(5), the contracting officer will make a fair and reasonable determination prior to award. The proposal will be reviewed by experienced technical analysts, contract specialists, and/or cost

analysts, as necessary.

6. A Statement of the Actions the Agency May Take to Remove or Overcome any Barriers that Led to the Exception to Fair Opportunity before any Subsequent Acquisition for the Supplies or Services is Made.

The Government's Contracted Air Services AAR MAC includes one other contractor; however, the other contractor does not possess an aircraft that is authorized to perform AAR operations required as listed in paragraph 3 above. The other AAR services provider is Omega Aerial Refueling Services and their [REDACTED] are not authorized to refuel the German Air Force Typhoon and Tornado receiver aircraft. It would take at least 12 to 24 months for OARS to receive airworthiness approvals from both Germany and USN.

CERTIFICATIONS AND APPROVAL**TECHNICAL/REQUIREMENTS CERTIFICATION**

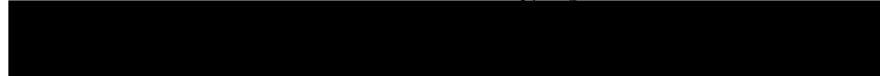
I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein are complete and accurate to the best of my knowledge and belief.

Technical/Requirements Cognizance:

			13 Feb 2025
Signature	Name (Printed)	Phone No.	Date

LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.

			
Signature	Name (Printed)	Phone No.	Date

CONTRACTING OFFICER CERTIFICATION

I certify that this Justification is accurate and complete to the best of my knowledge and belief.

			
Signature	Name (Printed)	Phone No.	Date

NAWCAD PROCUREMENT GROUP LEAD/CCO CERTIFICATION

I certify that this Justification is accurate and complete to the best of my knowledge and belief.

			
Signature	Name (Printed)	Phone No.	Date